



POLICE DEPARTMENT

June 28, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202300350 (Incident Date: January 7, 2023) regarding Police Officer Lester Haynes, Tax No. 954922 (DADS No. 2024-30027)

Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202300350, pertaining to Police Officer Lester Haynes. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that to pursue Charges and Specifications against Officer Haynes would be detrimental to the Police Department's disciplinary process.

After reviewing the facts and circumstances of the case, the Police Commissioner agrees with the CCRB's findings. However, in the interest of progressive discipline, the Police Commissioner intends to impose the mitigated penalty. Officer Haynes, in his nearly 11 years of service, has had no formal discipline, no prior substantiated CCRB complaints, is rated well above standards, has been evaluated as performing exceptionally over the last four years, and has been awarded 33 medals.

Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the New York City Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, intends to issue Officer Haynes a Schedule "B" Command Discipline.

Sincerely,

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
www.nyc.gov/ccrb



ARVA RICE
INTERIM CHAIR

July 5, 2024

The Honorable Edward A. Caban
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB Case No. 202300350 (Incident Date: January 7, 2023) regarding Police Officer Lester Haynes, Tax No. 954922 (DADS No. 2024-30027)

Commissioner Caban:

I am writing in response to the letter from Deputy Chief Anthony S. Marino, dated June 28, 2024. Pursuant to Paragraph 2 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department (hereinafter referred to as the “MOU”), I am responding to Deputy Chief Marino’s notification.

Deputy Chief Marino stated that after reviewing the request for Charges and Specifications, you determined that to pursue said charges against PO Haynes would be detrimental to the Police Department’s disciplinary process. Consequently, you concluded you would retain jurisdiction, and direct the issuance of a Schedule “B” Command Discipline, citing PO Haynes’s lack of prior substantiated CCRB complaints, and PO Haynes’s positive, lengthy tenure with the Department.

We disagree with your determination that PO Haynes’s conduct does not warrant the serving of Charges and Specifications. PO Haynes failed to activate his body-worn camera during a qualifying law enforcement action, to wit, a pedestrian stop. Additionally, PO Haynes threatened to issue a summons to a civilian, then subsequently failed to provide a business card at the conclusion of said interaction. The CCRB respectfully requests that you permit the disciplinary process against PO Haynes to continue and allow the Charges and Specifications to be served upon PO Haynes.

Respectfully submitted,

Matthew Kadushin

Matthew Kadushin
Acting Executive Director
NYC Civilian Complaint Review Board



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Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

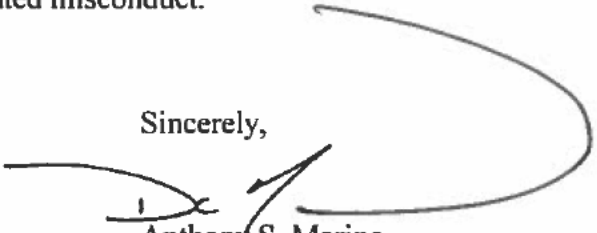
Re: CCRB Case No. 202300350 (Incident Date: January 7, 2023) regarding Police Officer Lester Haynes, Tax No. 954922 (DADS No. 2024-30027)

Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated July 5, 2024, concerning the Civilian Complaint Review Board ("CCRB") case involving Police Officer Lester Haynes. Nevertheless, he maintains that it would be detrimental to the Police Department's disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of Police Officer Haynes for the reasons expressed in my June 28, 2024 letter.

Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, directs that a Schedule "B" Command Discipline with the forfeiture of five (5) vacation days be issued for the substantiated misconduct.

Sincerely,



Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office